

JUDGE GRIESA

12 CIV 1791

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

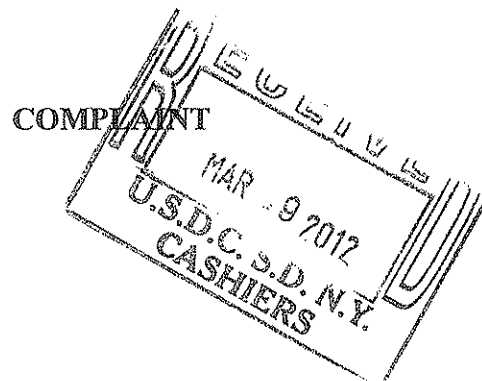
-----X
JUAN RODRIGUEZ,

Plaintiff,

vs.

THE CITY OF NEW YORK, a municipal entity,
DETECTIVE FRANK SEPULVEDA
(Shield No. 02244), DETECTIVE TYRONE
THOMPSON (Shield No. 06299), DETECTIVE
RICHARD DOHERTY (Shield No. 01359),
DETECTIVE DERRICK JACKSON
(Shield No. 4006), DETECTIVE ANGEL DALIZ
(Shield No. 06826), POLICE OFFICERS JOHN DOE
and RICHARD ROE (names and number of whom are
unknown at present), and other unidentified members
of the New York City Police Department, New York
City Police Supervisors and Commanders RICHARD
ROEs 1-50,

Defendants
-----X



JURY TRIAL
DEMANDED

PRELIMINARY STATEMENT

1. This is civil rights action in which the Plaintiff seeks relief for the Defendants' violation of his rights secured by the Civil Rights Act of 1871, 42 U.S.C. Section 1983, by the United States Constitution, including its Fourth, Fifth, Sixth and Fourteenth Amendments, and by the laws and Constitution of the State of New York. Plaintiff was falsely arrested by the Defendants, members of the New York City Police Department (hereinafter "NYPD") and maliciously prosecuted.

2. Defendant City is liable for the individual Defendants' acts under the theory of *respondeat superior*. At the time of the incident, they were acting under color of state law in the

course and scope of their employment at Defendant City and/or the NYPD, an agency of Defendant City.

3. As a result of the aforementioned constitutional violations, Plaintiff suffered emotional, mental and psychological pain and suffering.

JURISDICTION

4. This action is brought pursuant to 42 U.S.C. §§1983 and 1988, and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343 (3) and (4) and the aforementioned statutory and constitutional provisions.

5. Plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. §1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that give rise to the federally based claims and causes of action.

VENUE

6. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391, (a), (b) and (c) and § 1402 (b) because the claims arose in this district.

PARTIES

7. Plaintiff is and was at all times relevant herein a resident of the City of New York, State of New York.

8. Defendant SEPULVEDA, shield # 02244, is and was at all times relevant herein an officer, employee, and agent of the NYPD. On July 22, 2011, in which he falsely arrested Plaintiff, he was assigned to the Narcotic Boro Manhattan North. He is being sued in his individual capacity.

9. Defendant THOMPSON, shield # 06299, is and was at all times relevant herein an officer, employee, and agent of the NYPD. On July 22, 2011, in which he falsely arrested Plaintiff, he was assigned to the Narcotic Boro Manhattan North. He is being sued in his individual capacity.

10. Defendant DOHERTY, shield # 01359, is and was at all times relevant herein an officer, employee, and agent of the NYPD. On July 22, 2011, in which he falsely arrested Plaintiff, he was assigned to the Narcotic Boro Manhattan North. He is being sued in his individual capacity.

11. Defendant JACKSON, shield # 4006, is and was at all times relevant herein an officer, employee, and agent of the NYPD. On July 22, 2011, in which he falsely arrested Plaintiff, he was assigned to the Narcotic Boro Manhattan North. He is being sued in his individual capacity.

12. Defendant DALIZ, shield # 06826, is and was at all times relevant herein an officer, employee, and agent of the NYPD. On July 22, 2011, in which he falsely arrested Plaintiff, he was assigned to the Narcotic Boro Manhattan North. He is being sued in his individual capacity.

13. New York City Police Officers John Doe and Richard Roe (names and number of whom are unknown at present), and other unidentified members of the NYPD, are and were at all times relevant herein officers, employees and agents of the NYPD. Officers John Doe and

Richard Roe are being sued herein in their individual capacities for their participation in the false arrest of Plaintiff.

14. New York City Police Supervisors and Commanders Richard Roes 1-50 are and were at all times relevant herein involved in the false arrest and malicious prosecution of Plaintiff. They are sued individually and in their official capacities for their participation in the false arrest of Plaintiff.

15. Each and all of the acts of the Defendants alleged herein were undertaken by said Defendants while acting in the course and scope of their duties and functions as agents, employees, and officers of the City of New York and/or the NYPD when engaging in the conduct described herein.

16. At all times relevant herein, Defendants acted for and on behalf of the City of New York and/or the NYPD in furtherance of their employment by Defendant City, with the power and authority vested in them as officers, agents and employees of the City and/or the NYPD and/or incidentally to the lawful pursuit of their duties as officers, employees and agents of the City and/or the NYPD.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

STATEMENT OF FACTS

18. At approximately 2:25 p.m., on July 22, 2011, Plaintiff was driving his vehicle northbound on Amsterdam Avenue in Upper Manhattan.

19. Plaintiff was driving to the 34th Precinct located at 181st and Broadway to pick up an accident report related to a car accident he was involved in on July 20, 2011.

20. While driving, an acquaintance from his neighborhood, Daniel Reyes, waved to Plaintiff, while walking.

21. Plaintiff stopped his vehicle.

22. Mr. Reyes asked Plaintiff for a ride to 181st Street to go shopping.

23. Plaintiff agreed to drive Mr. Reyes to 181st Street.

24. Mr. Reyes entered Plaintiff's vehicle.

25. Moments later, at 174th Street and Amsterdam Avenue, an unmarked police van pulled upon alongside Plaintiff's vehicle and stopped in front of it.

26. Defendants SEPULVEDA, THOMPSON, DOHERTY, JACKSON, and DALIZ (hereinafter "Individual Police Defendants") and Police Officers John Doe and Richard Roe (names and number of whom are unknown at present), and other unidentified members of the NYPD in plain clothes exited the van, drew their guns and walked toward Plaintiff's vehicle.

27. The Individual Police Defendants and Police Officers John Doe and Richard Roe (names and number of whom are unknown at present), and other unidentified members of the NYPD pulled Plaintiff and Mr. Reyes out of the car.

28. The Individual Police Defendants and Police Officers John Doe and Richard Roe (names and number of whom are unknown at present), and other unidentified members of the NYPD searched Plaintiff.

29. The Individual Police Defendants and Police Officers John Doe and Richard Roe (names and number of whom are unknown at present), and other unidentified members of the NYPD did not recover any contraband, weapons or drugs from Plaintiff.

30. The Individual Police Defendants and Police Officers John Doe and Richard Roe (names and number of whom are unknown at present), and other unidentified members of the NYPD searched Plaintiff's vehicle.

31. The Individual Police Defendants and Police Officers John Doe and Richard Roe (names and number of whom are unknown at present), and other unidentified members of the NYPD did not recover any contraband, weapons or drugs inside Plaintiff's vehicle.

32. The Individual Police Defendants and Police Officers John Doe and Richard Roe (names and number of whom are unknown at present), and other unidentified members of the NYPD arrested Mr. Reyes after finding a large quantity of drugs on his person.

33. Despite Plaintiff's lack of connection to any criminal activity, The Individual Police Defendants and Police Officers John Doe and Richard Roe (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department placed Plaintiff under arrest and transported him to a nearby precinct.

34. This was Plaintiff's first arrest.

35. Plaintiff was charged with Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1).

36. On July 22, 2011, Mr. Rodriguez did not commit the crime of Criminal Possession of a Controlled Substance in the Third Degree. In addition, at no point did Mr. Rodriguez act suspiciously, commit any crime or do anything that might reasonably have aroused police suspicion.

37. Plaintiff was held at the local precinct for several hours.

38. While at the local precinct, Plaintiff was told by the Defendants that there was no evidence against him.

39. Despite having no probable cause to arrest and prosecute Plaintiff, Defendants New York City Police Supervisors and Commanders Richard Roes 1-50, who were the supervising officers, reviewed, approved, and ratified the arrest of Plaintiff.

40. After being held at the precinct for several hours, Plaintiff was transported to Criminal Court located at 100 Centre Street in New York County. Plaintiff spent the night of July 22, 2011 in jail. He was arraigned and pled not guilty. He was released on his own recognizance on or about July 23, 2011.

41. On or about August 12, 2011, the New York County District Attorney's Office dismissed the criminal case against Plaintiff.

Plaintiff's Injuries and Damages

42. As a direct and proximate consequence of the aforementioned actions by the Defendants, Plaintiff:

- (1) Suffered severe emotional and mental anguish and pain;
- (2) Suffered psychological injuries;
- (3) Was denied his state and federal constitutional rights and liberties;
- (4) Was publicly shamed, disgraced, ridiculed and humiliated and suffered damage to reputation;
- (5) Incurred substantial legal fees;
- (6) Continues to suffer from psychological injuries, emotional and mental anguish and pain; and

(7) Incurred other items of attendant damages.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

43. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. Defendants who were acting within the scope of their employment, arrested and caused Plaintiff to be imprisoned without probable cause in violation of Plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

Malicious Prosecution/Fourth Amendment Rights

45. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 44, with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the Defendants constitute malicious prosecution under the Fourth Amendment to the Constitution of the United States. Defendants commenced and continued a criminal proceeding against Plaintiff. There was actual malice and an absence of probable cause for the proceeding. In addition, the proceeding terminated favorably to Plaintiff

when on August 12, 2011, the charges against Plaintiff were dismissed.

THIRD CAUSE OF ACTION

False Arrest

47. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, and the NYPD, which are therefore responsible for their conduct.

50. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

FOURTH CAUSE OF ACTION

Malicious Prosecution

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The acts and conduct of the Defendants constitute malicious prosecution under the laws of the State of New York. Defendants initiated and continued a criminal proceeding against Plaintiff.

53. The proceedings terminated in Plaintiff's favor.

54. There was no probable cause for the commencement or the continuation of the criminal proceeding.

55. Defendants acted with actual malice.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the NYPD, which are therefore responsible for their conduct.

57. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

58. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. Defendant City and its employees, servants and or agents acting within the scope of their employment did negligently hire, train, retain and supervise the Defendants, individuals who were unfit for the performance of police duties on the dates set forth above and at the aforementioned locations.

60. The acts of the Defendants, employees of Defendant City and the NYPD were the

result of Defendant City's negligence, in its hiring, training, retention, and supervision of its agents, servants and/or employees.

61. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

JURY DEMAND

62. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

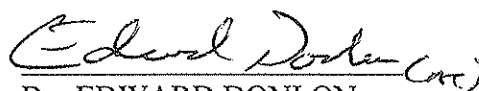
PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for relief as follows:

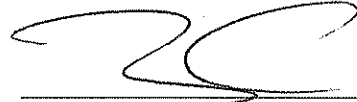
- b. For compensatory damages in an amount to be determined;
- c. For punitive damages in an amount to be determined;
- d. For reasonable attorneys' fees, together with costs and disbursements, pursuant to § 1988 and this Court's discretion;
- e. For pre-judgment interest as allowed by law; and
- f. For such other and further relief as this Court may deem just and proper.

DATED: March 9, 2012
New York, New York

Yours, etc.


By: EDWARD DONLON

110 Wall Street
New York, New York 10005
(646) 691-6380



By: ANTHONY CECUTTI
(AC 5867)
100 Lafayette Street, Suite 401
New York, New York 10013
(917) 741-1837

TO: CITY OF NEW YORK
c/o Corporation Counsel
100 Church Street
New York, New York 10007

DETECTIVE FRANK SEPULVEDA (Shield No. 02244)
Narcotic Boro Manhattan North

DETECTIVE TYRONE THOMPSON (Shield No. 06299)
Narcotic Boro Manhattan North

DETECTIVE RICHARD DOHERTY (Shield No. 01359)
Narcotic Boro Manhattan North

DETECTIVE DERRICK JACKSON (Shield No. 4006)
Narcotic Boro Manhattan North

DETECTIVE ANGEL DALIZ (Shield No. 06826)
Narcotic Boro Manhattan North

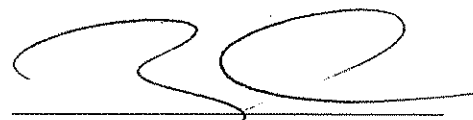
ATTORNEY VERIFICATION

State of New York)
) ss.:
County of New York)

EDWARD DONLON, ESQ. and ANTHONY CECUTTI, ESQ., attorneys duly admitted to practice before the courts of the State of New York, affirm the following under penalty of perjury:

We represent the Plaintiff in this action. We have read the foregoing and know the contents thereof; the same is true to our own knowledge, except as to matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true. The reason this verification is made by us and not by the Plaintiff is that he resides outside of New York County, the location of our offices.


EDWARD DONLON, ESQ. *(enc)*


ANTHONY CECUTTI, ESQ.